

By requesting ECHONET Device Certificates — by opening an account, placing a purchase order or submitting a Subordinate CA Naming Application — you (the "Subscriber" or "Manufacturer") accept the terms and conditions of this Agreement and are bound by them from the date of that request. This Agreement is the "ECHONET Subscriber Agreement" referred to in the OISTE ECHONET CP/CPS.

This Agreement is concluded between SealSQ SAS, ZA Bachasson, Arteparc Bat A – 13590 Meyreuil, France, owner of the SealSQ IOT ROOT GA and a WISEKey Holding company, operating the ECHONET hierarchy under the OISTE/WISEKey Global Trust Model and together referred to as "SealSQ" or "we", and the Subscriber ("you"). The trust model, policies and practices applied beneath the Root are regulated by the OISTE Foundation through its Policy Approval Authority (CP/CPS Appendix B).

1 Definitions. Capitalised terms have the meaning given in the CP/CPS. In addition:

CP/CPS	The OISTE ECHONET Certificate Policy and Certification Practice Statement, current version, published at https://github.com/OISTE/repository and https://wisekey.com/repository .
ECHONET Requirements	Any requirement applicable to PKI services, certificate profiles or device identity published by the ECHONET Consortium and formally adopted by the PAA in CP/CPS Appendix D. Where one exists it prevails over the CP/CPS and over this Agreement (CP/CPS 2.2.1); where none governs a matter, the CP/CPS is self-contained.
ECHONET Device Certificate	The certificate issued under a Subordinate CA to an individual ECHONET device, binding it to you and to your Manufacturer Code, Product Code and Production Number (CP/CPS 1.4.1, 7.1.4). No scheduled expiration, unless you request a fixed validity for a product line (CP/CPS 6.3.2).
Subordinate CA	An ECHONET Subordinate CA beneath the Root CA, operated by SealSQ on your behalf or by you as a technically constrained CA (CP/CPS 3.2.2, 7.1.5).
Manufacturer Code / Product Code / Production Number	The ECHONET Lite identifiers carried in properties EPC 0x8A (assigned to you by the ECHONET Consortium), 0x8C and 0x8D (assigned by you), placed in the certificate subject as stated in CP/CPS 7.1.4.
Certificate Problem Report	A report of suspected key compromise, misuse, mis-issuance or other problem affecting a certificate, submitted under CP/CPS 4.9.3.
INeS	The SealSQ certificate management platform (INeS IoT Security Portal) through which certificates are requested, issued, managed and revoked.

2 Scope. This Agreement regulates the provision of ECHONET certification services by SealSQ to you as Subscriber of ECHONET Device Certificates for the devices you manufacture and, where applicable, as owner of an ECHONET Subordinate CA, and your use of those services.

3 Object and order of precedence. The certification services are provided in accordance with the CP/CPS and with any ECHONET Requirements adopted in CP/CPS Appendix D. In case of discrepancy an ECHONET Requirement prevails over the CP/CPS, and the CP/CPS prevails over this Agreement, except for the commercial terms (fees, liability caps, termination), which are governed by this Agreement and your service agreement.

4 SealSQ warranty. In providing its certification services SealSQ complies with the obligations of CP/CPS section 9.6.1 and issues every certificate in conformity with the profile of CP/CPS section 7.1. Upon your acceptance of a certificate SealSQ warrants that it was so issued, that your identity, Consortium standing and Manufacturer Code entitlement were verified as stated in CP/CPS section 3.2, and that revocation status is published by CRL as stated in CP/CPS sections 4.9 and 4.10. The ECHONET Consortium publishes no PKI certificate policy and gives no warranty in respect of SealSQ's services; assurance rests on the assessments of CP/CPS section 8.

5 Certification services delegated to you. Through the INeS platform SealSQ delegates to you the following functions, which you perform as a Registration Authority within the meaning of CP/CPS section 1.3.2 and under the controls of CP/CPS section 5:

- the submission of enrolment requests from a production system authenticated to the issuing CA and constrained to your Manufacturer Codes (CP/CPS 3.2.3.1);
- the assignment and verification of the Product Code and Production Number placed in each certificate, taken from your production record;

- the generation of device key pairs in, or their controlled injection into, a hardware-backed key store, and the installation of the certificate into the device (CP/CPS 6.2.7, 6.4.1);
- the retention of the production and enrolment records that link each certificate to a physical device, for as long as the certificate remains valid and for at least 7 years after its expiry or revocation (CP/CPS 5.5.2, 6.3.2).

Where you operate a Subordinate CA yourself, you operate a technically constrained Certification Authority under CP/CPS sections 3.2.2, 3.2.6, 7.1.5 and 8.4: its certificate carries a critical nameConstraints extension limited to your Organization and Country, it is configured to issue only for your Manufacturer Codes, it is admitted only after your initial self-assessment is accepted by the PAA and the OWGTM accreditation assessment is completed, and it must publish a full CRL at least every 12 months and within 24 hours of any revocation (CP/CPS 4.9.7). You may not further delegate these functions without SealSQ's prior written approval.

6 Subscriber acknowledgements. Upon accepting this Agreement you acknowledge that:

- you have read the CP/CPS and any ECHONET Requirements applicable to device certificates and Subordinate CAs, and understand the nature of the services, the use, security precautions and functionalities of certificates, cryptographic keys and the INeS platform;
- you are a member of the ECHONET Consortium in good standing, or otherwise entitled by the Consortium to place ECHONET devices on the market; SealSQ re-verifies your identity, standing and Manufacturer Code entitlement at least every 825 days, and you will notify SealSQ without delay if either ceases (CP/CPS 3.2.2.1);
- the warranties and the limitations on liability and damages set out in the CP/CPS and in clause 10 of this Agreement apply;
- SealSQ may, at its sole discretion, decline to process or issue a certificate (CP/CPS 4.2.2);
- ECHONET Device Certificates are delivered to you and are not published; the Root CA and Subordinate CA certificates and their CRLs are published in the OWGTM repository (CP/CPS 2.1, 2.3); relying parties check status by CRL and no OCSP service is offered (CP/CPS 4.9.6, 4.9.9);
- key escrow is not permitted (CP/CPS 4.12) and suspension is not supported (CP/CPS 4.9.13);
- SealSQ will revoke a certificate — within 24 hours for key compromise, mis-issuance or misuse and within 5 days otherwise, after investigating a Certificate Problem Report within 24 hours of receipt (CP/CPS 4.9.5) — if you request it or if SealSQ obtains evidence or is made aware that:
 - the private key corresponding to the public key in the certificate has been compromised, or a method exists that can easily compute it or the key-generation method was flawed;
 - the original certificate request was not authorised and authorisation is not retroactively granted;
 - the validation of your identity or of any device identifier in the certificate should not be relied upon, or you are no longer entitled to a Manufacturer Code, product identifier or other identifier in the certificate;
 - the certificate has been misused, or you have violated a material obligation of this Agreement;
 - information in the certificate is inaccurate or has materially changed, or the certificate was not issued in accordance with the CP/CPS;
 - any other revocation reason stated in CP/CPS 4.9.1.1 or in an ECHONET Requirement applies.

7 Your obligations and warranties. Upon applying for certificates you agree to provide accurate and complete information and to review each issued certificate before installing it. Upon accepting a certificate you warrant, in line with CP/CPS section 9.6.3, that:

- all information you supply and all identifiers you place in certificates are true and valid; each Production Number is unique within its Product Code and identifies a single physical device; each Manufacturer Code you use has been assigned to you by the ECHONET Consortium;
- the private key of each device is generated and held in a hardware-backed key store (secure element, secure enclave or TPM) that prevents export of the key in plaintext or, where a device cannot provide one, in an encrypted container that you have recorded and the PAA has accepted; no shared or default activation secret is used across devices (CP/CPS 6.2.7, 6.4.1);
- where keys are injected in a factory, the injection environment is physically and logically controlled by you, key material is transported encrypted, and any copy held outside the device is destroyed once injection is confirmed (CP/CPS 6.4.1);
- you will install each certificate and its private key only in the device the certificate identifies, and will not use it until you have verified the accuracy of its contents;
- you will promptly cease using a certificate and request its revocation through the INeS IoT Security Portal or cps@wisekey.com (CP/CPS 4.9.3) if any information in it becomes inaccurate or if you know or suspect that the private

key has been compromised, lost or materially affected, and will demonstrate key compromise by one of the methods of CP/CPS 4.9.12;

- you will cease all use of a private key upon expiration or revocation of its certificate;
- you will use the certificates solely for the authentication of your own ECHONET devices and the protection of their transactions, in accordance with the CP/CPS and any ECHONET Requirements;
- where you operate a Subordinate CA, you will keep its key in a cryptographic module meeting CP/CPS 6.2.1, maintain the name and configuration constraints of CP/CPS 7.1.5, operate its CRL service as stated in CP/CPS 4.9.7, submit the initial and annual self-assessments of CP/CPS 8.1 and grant the access required for the assessments of CP/CPS 8.4;
- you will pay the fees for the certification services in accordance with your service agreement and purchase orders.

8 Certificate acceptance. In accordance with CP/CPS section 4.4.1, you are deemed to have accepted a certificate when you accept this Agreement in electronic form, when you download or install the certificate, making it technically available for use, or when you do not expressly refuse it once the issuance notification has been sent. You accept a Subordinate CA certificate when your representative acknowledges its receipt and verifies that the key fingerprint matches the request, or installs it in the CA system.

9 Validity period and fees. ECHONET Device Certificates have no scheduled expiration, unless you request a fixed validity for a product line. Like the Root CA and Subordinate CA certificates, they carry a notAfter value of 31 December 9999 and remain valid until revoked, so renewal does not apply to them (CP/CPS 4.6.1, 6.3.2). The provision of the services, including the operation of your Subordinate CA on INeS and the issuance of device certificates, is subject to payment of the fees in your service agreement and purchase orders (CP/CPS 9.1); the refund policy is the one stated there or, failing that, in SealSQ's general terms and conditions (CP/CPS 9.1.5).

10 Liability. The disclaimers and limitations of liability of CP/CPS sections 9.7 and 9.8 apply to all claims arising in relation to certificates and certification services provided by SealSQ. If SealSQ breaches the warranty of clause 4 and you are in compliance with this Agreement, SealSQ's liability is capped, per class of certificate, at the amounts below, in Euros:

Certificate class	Maximum liability per certificate (EUR)	Total aggregate liability per certificate (EUR)
ECHONET Subordinate CA certificate	10,000	500,000
ECHONET Device Certificate	100	1,000

Whereas:

- **"Maximum liability per certificate"** is the maximum aggregate liability per year on a single certificate towards a single relying party.
- **"Total aggregate liability per certificate"** is the maximum aggregate liability per year on a single certificate towards all end users, relying parties and any other entities affected by that certificate.
- **"Global liability"** is the aggregate liability limit of the OWGTM towards all end users, relying parties and any other entities that are not Subordinate PKI Entities in respect of all certificates issued under the Root CA, which under CP/CPS section 9.8 is EUR 5,000,000 in total and EUR 500,000 per year. SealSQ administers claims on a first-come, first-served basis. You may make only one warranty claim per transaction regardless of how many SealSQ products or services you relied on. Once the applicable cap is reached, you release SealSQ from any liability for remaining unreimbursed amounts.

These limitations apply to any liability whether based in contract, tort (including negligence) or any other theory, and to any direct, indirect, special, punitive, exemplary, consequential, reliance or incidental damages. The OISTE Foundation delegates this liability to SealSQ as lead operator, which covers it through an Errors and Omissions insurance (CP/CPS sections 9.2.1 and 9.8).

11 Data protection and privacy. SealSQ acts as data controller and you, when performing the functions of clause 5, as data processor or joint controller (CP/CPS 9.4). You consent to the SealSQ Privacy Policy. No personal data is placed in ECHONET Device Certificates or CA certificates; the personal data processed is that of your contacts and representatives, which is processed in compliance with the GDPR and, for subscribers established in Japan, the Act on the Protection of Personal Information (CP/CPS 9.4). You authorise SealSQ to publish certificate status information by CRL and to disclose information relevant to any judicial or administrative proceeding concerning the reliability or legal validity of a certificate (CP/CPS 9.4.6).

12 Intellectual property. The certificates, the object identifiers and the CP/CPS are owned by the OISTE Foundation, save that the Root CA certificate and its key belong to SEALSQ; your private and public keys are your property (CP/CPS 9.5, Appendix B). Any trademark included in a certificate is under your responsibility.

13 Indemnification. You will indemnify and hold harmless WISEKey, SEALSQ, the OISTE Foundation and their respective directors, officers, employees, agents and affiliates from any liability arising out of your use of the certificates for other than their intended use, out of certificates issued on the basis of inaccurate identifiers or from an insecure manufacturing process, out of a Subordinate CA you operate in breach of the CP/CPS, or out of any material breach of your obligations under this Agreement.

14 Electronic contracting and notices. You agree to the formation and conclusion of contracts and to the delivery of notices and communications by electronic means, including the acceptance of this Agreement and termination notices, and confirm that you have the capability and equipment to do so. Notices to you are sent to the e-mail address in your registration information (CP/CPS 9.11). SealSQ may amend this Agreement and the CP/CPS following CP/CPS section 9.12; amendments are published in the OWGTM repository and major changes are notified to you.

15 Term and termination. This Agreement takes effect on your first request and remains in force while any certificate issued to you under it is valid. Either party may terminate it at any time. If you terminate without cause, no fees are refunded; if SealSQ terminates without cause, it refunds you in accordance with its refund policy; if SealSQ terminates with cause, no refund is due. On termination SealSQ ceases issuance for you; certificates already issued remain valid until they are revoked or, where a fixed validity applies, until they expire. A Subordinate CA you operate is retired under CP/CPS 5.6 and 6.3.2: it ceases issuing but is not revoked, and you continue to publish its CRL for as long as device certificates issued beneath it remain in service. Your obligations concerning the private keys, confidentiality and personal data survive (CP/CPS 9.10.3).

16 Assignment. You may not assign any right or obligation under this Agreement without SealSQ's written consent (CP/CPS 9.16.2).

17 Severability. If any provision of this Agreement is held invalid by a court of competent jurisdiction, the remaining provisions remain in force, and the invalid provision is replaced by a valid one that most closely reflects its purpose (CP/CPS 9.16.3).

18 Applicable law and jurisdiction. This Agreement is governed by the laws of Switzerland, and the parties submit to the exclusive jurisdiction of the courts of Geneva (CP/CPS 9.13 and 9.14).

ACCEPTANCE

Acceptance is given electronically when you open your account or submit your first request. Where a signed copy is required, complete the block below.

Subscriber (legal name)	<i>Organisation</i>	Signature
Manufacturer Code (EPC 0x8A)	<i>Six hexadecimal digits, e.g. 0000B8</i>	
Authorised representative	<i>Name and position</i>	
Date	<i>Select a date</i>	

This Agreement is issued by

SealSQ — operator of the ECHONET hierarchy under the SealSQ IOT ROOT GA

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